

Rhode Island

GENERAL INFORMATION

1. Rhode Island **maintains** a list of eligible surplus lines insurers (foreign companies only) (see Other Comments section #1).
2. Rhode Island **does not** have a Surplus Lines Association.
3. Rhode Island **does not** have an Export List.
4. Rhode Island **does** have an industrial insured exemption applicable to captive insurers only which will remain in effect. Rhode Island has also incorporated the NRRA exempt commercial purchaser exemption as per Bulletin 2011-6.
5. **Surplus lines tax:** 4%, payable by broker.
6. Rhode Island **does not** allow the formation of domestic surplus lines insurers in the state.

(Note: Rhode Island has also extended the 2% tax on insurance gross premiums to the Medical Malpractice Joint Underwriters Association).

ELIGIBILITY AND FILING REQUIREMENTS (ALL INSURERS)

Annual Premium Report: by July 31 (required by Rhode Island Division of Taxation. Reports and questions should be addressed to Division of Taxation).

ELIGIBILITY AND FILING REQUIREMENTS (ALIEN INSURERS ONLY)

Per Rhode Island DOI guidance, a broker may place business with an alien insurer if the insurer is listed on the Quarterly Listing of Alien Insurers maintained by the NAIC.

ELIGIBILITY AND FILING REQUIREMENTS (FOREIGN INSURERS ONLY)

A surplus lines broker may place insurance with a foreign insurer if:

- The insurer has established satisfactory evidence of good repute and financial integrity; and
- The insurer is authorized to place that type of insurance in its domiciliary jurisdiction; and
- The insurer has capital and surplus, or its equivalent under the laws of its domiciliary jurisdiction, that is the greater of the minimum capital and surplus requirements under the laws of this state or \$15 million.

TYPES OF INSURANCE EXEMPTED FROM SURPLUS LINES REGULATION

1. Policies issued outside Rhode Island involving insurance on vessels, crafts, or hulls, cargoes, marine protection and indemnity or other risks including strikes and war risks commonly insured under ocean marine or wet marine forms.
2. Industrial insurance which is defined as an insured:
 - Which procures the insurance of any risk by the use of the services of a full-time employee acting as insurance manager or buyer or the services of a regularly and continuously retained qualified insurance consultant;
 - Whose aggregate annual premiums on all risks excluding workers' compensation and group total at least \$25,000; and
 - Which has at least 25 full-time employees.

OTHER COMMENTS OR REQUIREMENTS

1. Rhode Island's eligibility list is available at <https://dbr.ri.gov/divisions/insurance/licensed.php>.
2. Rhode Island exempts an insured and surplus lines brokers from the requirement of filing an affidavit when obtaining surplus lines insurance for certain insurable interests. The exempted risks include: amusement parks and devices, environmental improvement and/or remediation sites, vacant property or property under renovation, demolition operations, event cancellation due to weather, railroad liability, discontinued products, fireworks and pyrotechnics, warehouseman's legal liability, excess property coverage, and contingent liability.
3. Surplus lines affidavits need not be filed with the Rhode Island DOI. The affidavit must still be completed and is subject to audit by the Rhode Island DOI.
4. Insurance Regulation 11, governing surplus lines brokers: 1) allows a non-resident surplus lines broker to apply for a non-resident surplus lines broker's license without first obtaining a resident property and casualty insurance producer's license; 2) increases the tax from 3% to 4% on gross premiums; and 4) requires brokers to include written notice in applications and policies about the unavailability of benefits under Rhode Island's Insurers Insolvency Fund.
5. Every application form for insurance from a surplus lines insurer, every affidavit form executed by the insured, and every policy (on its front and declaration pages) issued by the surplus lines insurer, shall contain in 10 pt type the following notice:

“NOTICE THIS INSURANCE CONTRACT HAS BEEN PLACED WITH AN INSURER NOT LICENSED TO DO BUSINESS IN THE STATE OF RHODE ISLAND BUT APPROVED AS A SURPLUS LINES INSURER. THE INSURER IS NOT A MEMBER OF THE RHODE ISLAND INSURERS INSOLVENCY FUND. SHOULD THE INSURER BECOME INSOLVENT, THE PROTECTION AND BENEFITS OF THE RHODE ISLAND INSURERS INSOLVENCY FUND ARE NOT AVAILABLE.”

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